SOP-7778
STANDING ORDERS – STOWAWAY OPERATIONS

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The signatures below certify that this procedure has been reviewed and accepted, and demonstrates that the signatories are aware of all the requirements contained herein and are committed to ensuring their provision.

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Amendment Record

This procedure is reviewed to ensure its continuing relevance to the systems and process that it describes. A record of contextual additions or omissions is given below:

Page No.	Context	Revision	Date

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SOP-7778 STANDING ORDERS – STOWAWAY OPERATIONS

1. Introduction & Purpose

The purpose of this procedure is to ensure the lawful, ethical, and humane management of stowaways and detainees aboard vessels, in compliance with international laws and human rights standards, while maintaining the safety and security of the crew, vessel, and detainees.

2. References

Any contractor being engaged by or on behalf of Seagull Maritime are expected to operate in strict accordance with all applicable national and international laws and regulations, including the Controls, Codes and Protocols Governing the Use of Armed Force at Sea.

2.1 Voluntary Principles on Security & Human Rights (VPSHRs)

http://www.voluntaryprinciples.org/principles/introduction

- Governments, companies and NGOs engaged in a dialogue on security and human rights.
- Security is a fundamental need, shared by individuals, communities, businesses, and governments.
- Governments have the primary responsibility to promote and protect human rights.
- Companies recognize a commitment to act in a manner consistent with the laws of the countries within which they are present.
- Recognize the value of engaging with civil Society and host and home governments.
- The importance of sharing and understanding our respective experiences regarding, inter alia, best security practices and procedures.

2.2 United Nations Basic Principles on the Use of Force and Firearms by Law Enforcement Officials (1990)

http://www2.ohchr.org/english/law/firearms.htm

- Keep the ethical issues associated with the use of force and firearms constantly under review.
- Develop a range of means as broad as possible, that would allow for a differentiated use of force and firearms.
- Officials, in carrying out their duty, shall, as far as possible, apply non-violent means before resorting to the use of force and firearms.
- Exercise restraint; minimize damage and injury; respect human life; provide medical assistance to injured persons; notification at the earliest possible time to superiors and relatives.

2.3 Code of Conduct for Law Enforcement Officials Adopted by General Assembly Resolution 34/169 of 17 December 1979

http://www2.ohchr.org/english/law/codeofconduct.htm

- Officials shall respect and protect human dignity and maintain and uphold the human rights of all persons.
- Force to be only when strictly necessary and to the extent required for the performance of duty.

- No officials may instigate or tolerate any act of torture or other cruel, inhuman or degrading treatment or punishment.
- Officials shall ensure the full protection of the health of persons in their custody.
- Officials shall respect the law

2.4 Convention for the Suppression of Unlawful Acts Against the Safety of Maritime Navigation (Rome, 10 March 1998)

http://www.admiraltylawguide.com/conven/suppression1988.html

- Everyone has the right to life, liberty and security of person.
- Unlawful acts against the safety of maritime navigation jeopardize the safety of persons and property.
- All states, in combating unlawful acts against the safety of maritime navigation, must strictly comply with rules and principles of general international law.
- Any person commits an offence if they unlawfully and intentionally seize a ship by force or threat thereof; perform an act of violence against a person on board a ship or the ship itself; injure or kill any person so doing.
- The master may deliver to the authorities of any other State any person who he has reasonable grounds to believe has committed one of the offences set out above.

2.5 International Code of Conduct for Private Security Service Providers dated 9 Nov 2010 (“Montreux Document”)

http://www.eda.admin.ch/psc

- PMSCs are obliged to comply with international humanitarian law, human rights law and applicable national law, and specific regulations on private military or security services
- PMSC personnel are subject to prosecution if they commit conduct recognized as crimes under applicable national or international law
- Criteria for selection of PMSCs
- Contract terms with PMSCs
- Guidance on monitoring compliance and ensuring accountability
- Rules on the provision of services by PMSCs and their personnel, including appropriate rules on the use of force and firearms and on the possession of weapons by PMSCs

2.6 International Association of Oil and Gas Producers (OGP), Report 320, Revision 2, Firearms and Use of Force, dated Feb 2010

http://www.ogp.org.uk/pubs/320.pdf

- The safety of all involved personnel is paramount.
- Minimize damage and injury and respect and preserve human life.
- Security agreements should respect human rights and be consistent with the applicable legal principles.
- Alternatives to armed protection should be considered.
- All those carrying arms on behalf of the company should be properly trained security professionals.

2.7 Guidance Notes and extant Best Management Practice (BMP) as published by the International Maritime Organisation

https://www.classnk.com/hp/pdf/activities/statutory/isps/BMP-West-Africa.pdf

https://www.ocimf.org/publications/books/bmp5

- Best Management Practice version 5 (BMP5) published in June 2018 and Best Management Practice – West Africa(BMP-WA) published in March 2020
- Piracy-related risk assessment.
- Ship and company planning procedures.
- Ship protection measures, including reference to armed protection.
- Situations: pirate attack; if the pirates take control if the military respond.
- Reporting and contact details.

2.8 Maritime Labour Convention (MLC, 2006)

- The shipowner and master must maintain a safe and secure working environment, which may include considerations for the safety and welfare of stowaways onboard to prevent harm to crew and others.
- Stowaways, as persons onboard, may be entitled to basic medical care if injured or in need of immediate assistance, consistent with the principles of ensuring health and safety at sea.
- Though not explicitly stated in the MLC, its overarching principles align with international human rights law, requiring that stowaways are treated humanely and not subjected to inhumane or degrading treatment.
- The master and shipowner must ensure compliance with international conventions, including those addressing safety and human rights, which would include the handling of stowaways.
- Living spaces must meet safety and hygiene standards. For stowaways, this can be interpreted to mean that any temporary accommodation provided should be safe, clean, and protect their basic dignity.
- food and drinking water of appropriate quantity and quality are provided to ensure health and well-being. Stowaways must not be deprived of basic sustenance.
- Sanitary facilities onboard must be adequate and accessible. Even for stowaways, basic access to toilets and ablutions should align with the MLC's commitment to human rights and hygiene.
- If a stowaway is injured or ill, the shipowner must provide medical care similar to that given to crew members, including evacuation if necessary for health reasons. In order to minimize interactions between stowaways and the ship's crew, the necessary medical assistance can be provided by the security team. Master in this case is obliged to provide all necessary medications and materials available on the ship in case of such a need.
- If women and children are present among the stowaways, they must be accommodated separately from men, providing them with the same access to basic needs.

3. Terms & Definitions

Term	Definition
Stowaway	An unauthorized person who hides aboard a vessel to gain passage without the consent of the vessel's owner or master.
Detainee	A person apprehended and held in custody aboard the vessel due to unlawful actions or security risks, pending repatriation or handover to competent authorities.

PCSP	Privately Contracted Security Personnel
Competent Authority	A government or legally authorized entity responsible for accepting and managing detainees or casualties under international and national law.
CSO	Company Security Officer
VPSHRs	Voluntary Principles on Security & Human Rights
ILO	International Labour Organization
ICoCa	International Code of Conduct Association

4. Application & Scope

This procedure applies to Seagull Maritime personnel and contractors managing stowaways and detainees aboard vessels during operations in international and territorial waters.

It ensures compliance with international laws and human rights standards, covering apprehension, detention, humane treatment, repatriation, and reporting of stowaways, while safeguarding the safety and dignity of all individuals involved.

5. Basic principles

Seagull Maritime follows the below principles regarding the apprehension, detention and treatment of persons.

5.1 Apprehension in Self Defence

No person will be apprehended unless in self-defense, or the defence of others, against an imminent threat of violence, or following an attack or crime committed by such persons against vessel crew members or embarked Seagull security personnel.

5.2 Repatriation

Any person apprehended in international waters will be repatriated to a Competent Authority at the earliest opportunity; the apprehension must be consistent with applicable national and international law.

Seagull Operations Centre will report at the earliest opportunity all such incidents to the vessel's CSO and any other members of the vessel's General Management team as nominated to Seagull prior to a transit being embarked.

5.3 Treatment of Detainees

Any persons so apprehended will be treated humanely and consistent with their status and protections under applicable human rights law or international humanitarian law, including prohibitions on torture or other cruel, inhuman or degrading treatment or punishment. There are no justifications for engaging in torture or other cruel, inhuman or degrading treatment or punishment – this is without exception.

Seagull Operations Centre will report at the earliest opportunity all such incidents to the vessel's CSO and any other members of the vessel's General Management team as nominated to Seagull prior to a transit being embarked.

5.4 Reporting & Transparency

Any personnel, either vessel crew member or Seagull PCSP, must report any acts of torture or other cruel, inhuman or degrading treatment or punishment, known to them, or of which they have reasonable suspicion.

Seagull Operations Centre will report at the earliest opportunity all such incidents to the vessel's CSO and any other members of the vessel's General Management team as nominated to Seagull prior to a transit being embarked.

5.5 Treatment of Casualties

Any person who is injured and / or incapacitated (i.e. poses no further threat), must be treated medically to the best ability of the people present, (be they vessel crew members or Seagull Team Members). The casualty(ies) should then be repatriated in accordance with these principles.

Seagull Operations Centre will report at the earliest opportunity all such incidents to the vessel's CSO and any other members of the vessel's General Management team as nominated to Seagull prior to a transit being embarked.

5.6 Handling of Fatalities

If an armed incident results in a fatality, regardless of the party, if practicable, all reasonable attempts must be made to ascertain and collate as much evidence as possible. If the deceased is a member of the vessel's crew or a Seagull PCSP, they should be handled and repatriated in accordance with the respective companies' standing instructions covering fatality at sea. If the deceased is an unauthorized third party (i.e. an attacker), they should be treated appropriately and repatriated in accordance with these principles.

Seagull Operations Centre will report at the earliest opportunity all such incidents to the vessel's Company Security Officer (CSO) and any other members of the vessel's General Management team as nominated to Seagull prior to a transit being embarked.

6. PROCEDURE FOR THE MANAGEMENT AND SECURING OF STOWAWAYS

6.1 Accommodation

The Team Leader, in coordination with the Master, must identify suitable secured accommodation to house detainees during the meeting.

Accommodation space must meet the minimal requirements of available space per person as outlined by the MLC, depending on the ship type. It is the obligation of the vessel owner and Master to provide necessary space for detained personnel.

Accommodation must provide access to basic human care, including:

- Toilets and ablutions for sanitation.
- Drinking water at all times.
- Bedding to ensure rest and comfort.

The designated accommodation area must be:

- Lockable from the outside to prevent unauthorized exit.
- Ensuring that Security Team is aware about the nearest location of alarm switch and firefighting equipment.
- Area around the accommodation should be restricted to ensure limited access by minimal interaction between crew and stowaways.

- Secured while detainees are inside.

Detained personnel must be treated with respect to their human rights and not be forced to any work onboard the ship.

After accommodation space is determined and detainees are placed inside, the Team Leader and secureity team, with the the assistance of the Master and crew should conduct an evacuation drill with the detainees , to ensure everyone's compliance with Ship Security Plan. During this drill, accommodation must remain locked from outside and secured by team member.

6.2 Watchkeeping

A 4-hours rotation schedule for the security team must be established by the Team Leader to ensure continuous monitoring of the detainees.

- Guards must stand watch at the accommodation at all times to prevent escape or unauthorized movement.

Detainees are not allowed to leave the accommodation unescorted.

- When movement is necessary ,detainees must make a request to the person on watch.
- The person on watch will coordinate with the Team Leader to arrange a two-man escort to accompany the detainees. Only a single detained person should left Accommodation at once.
- Escorts must remain with the detainees throughout the movement.

Detainees are never to be left unattended, whether in or outside the accommodation.

6.3 Taking Meals and Basic Needs

The Team Leader will liaise with the Master to establish regular meal times for detainees.

- Meals should:
    - Be provided at regular intervals and meet basic nutritional needs.
    - Include sufficient water to prevent dehydration.
    - Be served in compliance with sanitary standards to maintain health and hygiene.
- Meals are to be delivered to the secured accommodation or taken in a designated area under supervision:
    - If meals are taken outside the secured accommodation, detainees must be accompanied by a two-man escort at all times.
    - During meal times, accommodation remains locked from outside, remains under watch of a guard.

Toilet Access

- The designated secured accommodation must include or be near accessible toilet facilities or embedded cabins.
- When detainees request to use the toilet:
    - The person on watch must coordinate with the Team Leader to ensure a two-man escort accompanies the detainee.
    - The escort must remain present but maintain appropriate privacy for the detainee.

Shower and Hygiene

- Shower facilities should be made available at regular intervals, considering the hygiene needs of the detainees.
- The Team Leader should establish a schedule for detainees to access shower facilities, ensuring fairness and practicality, while not interfearing with crew's schedule.

- During showers:
    - The detainee must be escorted to and from the shower area by a two-man team.
    - Security personnel must remain nearby to ensure safety and prevent unauthorized movement while respecting the detainee's privacy.

Sanitation Supplies

- Basic hygiene supplies, including soap, towels, and toilet paper, must be provided to detainees.
- The Team Leader should monitor the availability of these supplies and replenish them as needed.

Additional Notes

- Detainees should be treated with dignity while accessing basic needs to comply with human rights and humanitarian standards.
- Security personnel must maintain a balance between vigilance and respect during these processes to ensure safety without undue discomfort to the detainees.

6.4. Communication with Stowaways

All communication with detainees must be professional and respectful to maintain order and compliance with human rights standards.

All communication should be in English or any other shared language to both PCSP and detained person.

In case there is no shared language between the parties, the Team Leader should use online translating tools (e.g. Google Translate). Communications with stowaways in this case should be established by using a notepad, and PCSPs should be provided with access to the Internet.

Crew contact with detainees must be minimized:

- Prevent unnecessary interactions.
- Avoid potential safety or security risks.
- Any concerns or requests from detainees must be communicated through the Team Leader to ensure proper handling.
- Detainees must be informed of basic rules and schedules (e.g., meal times, sanitation times) in a clear and respectful manner.
- Crew should avoid approaching accommodation area when possible.

6.5. Escape from Accommodation

If stowaways escape their secured accommodation, the following steps must be followed immediately to ensure safety, and security of the ship and crew:

- Raise the Alarm
    - SGOW must raise the alarm immediately upon discovering the escape.
    - Notify the Team Leader, the Master, and all relevant personnel on board.
    - Activate the vessel's internal alarm system to alert the crew.

- Secure the Vessel:
    - All crew members must be instructed to stay in secure locations until the situation is resolved.
    - Access to critical areas of the vessel (e.g., bridge, engine room) must be secured to prevent unauthorized entry.
    - In accordance with the Ship Security Plan, additional personnel may be deployed to monitor key areas where stowaways might attempt to hide or gain access.

- Stowaways search:
    - The Team Leader should coordinate with the security team and crew to conduct a systematic search of the vessel. Seach groups must contain 2-times more people then escaped stowaways. Each group must be equipped with radio device.
    - Efforts must prioritize minimizing risk to personnel and property.
    - In case stowaways are found to be armed with blunt\blade type weapons, Security Team must make all efforts to calm the stowaways and encourage them to disarm.
    - Where de-escalation fails, the security team should use only **minimal and proportional force** necessary to apprehend the stowaways, adhering to human rights principles.

The Team Leader must immediately report the escape to the CSO and Seagull Operations Centre, with Incident report or by Satellite Phone including:

- the time and location of the escape,
- actions taken,
- current status,
- any injuries or damages.

Once the stowaways are apprehended, reassess the secured accommodation for vulnerabilities, identifying how the escape occurred (e.g., lock failure, oversight in watchkeeping) and making appropriate rectifications to prevent recurrence.

6.6 Repatriation

Detainees must be repatriated to a Competent Authority at the earliest opportunity, in accordance with national and international laws in the next or agreed port of call. Until leaving the vessel, Master is responsible for all those present on board, including stowaways.

The Team Leader should coordinate with the Master and the Seagull Operations Centre to ensure:

- Proper documentation of the detainee's status and actions.
- Timely reporting of the incident to relevant authorities and stakeholders.
- Logistical arrangements for repatriation, including coordination with the receiving authority.
- During repatriation, detainees must remain under constant supervision of Security Team to prevent security breaches.

After stowaways are disembarked, PCSP should report to Master and Authorities, giving witness statements upon need.

7. Risk Assessment

7.1. Risk Identification

Risk	Description	Likelihood	Impact	Risk Level
Escape of detainees	Detainees may attempt to escape from secured accommodation or during transit.	Medium	High	High
Injury to detainees or personnel	Physical harm may occur during apprehension, transport, or due to inadequate facilities.	Medium	High	High
Human rights violations	Inappropriate treatment or lack of basic needs may lead to violations of international standards.	Low	High	Medium
Conflict with detainees	Aggressive behavior by detainees may threaten crew or security personnel.	Medium	High	High
Health issues among detainees	Illness or injury among detainees may escalate due to lack of timely medical attention.	Low	High	Medium
Legal non-compliance	Failure to meet national or international legal obligations could result in penalties or litigation.	Low	High	Medium
Crew disruption or safety compromise	Increased interaction with detainees may distract crew and compromise vessel operations.	Medium	Medium	Medium
Security team fatigue	Continuous watchkeeping may result in fatigue among security personnel, affecting performance.	High	Medium	High
Reputational damage	Allegations of mistreatment or misconduct could harm the company's reputation.	Low	High	Medium

7.2 Risk Mitigation Measures

Risk	Mitigation Measures
Escape of detainees	- Ensure accommodation is lockable and monitored at all times. - Use a two-man escort for any detainee movements.
Injury to detainees or personnel	- Provide proper training for handling detainees during the voyage. - Ensure accommodations meet safety standards and minimize physical risks.
Human rights violations	- Regularly review procedures to ensure compliance with international standards. - Provide detainees with access to food, water, sanitation, and medical care. - To ensure met of gender rights.
Conflict with detainees	- Train personnel in conflict de-escalation techniques. - Minimize unnecessary interaction between crew and detainees. - To provide PCSPs with necessary PPE.
Health issues among detainees	- Ensure access to basic medical care. - Monitor detainee health regularly and address issues promptly.
Legal non-compliance	- Ensure all actions align with national and international regulations. - Maintain proper documentation and incident reporting.
Crew disruption or safety compromise	- Limit crew contact with detainees. - Clearly define roles and responsibilities for handling detainees.
Security team fatigue	- Implement a rotation schedule to prevent fatigue. - Monitor team well-being and adjust schedules as needed.
Reputational damage	- Ensure transparency in procedures and incident reporting to CSO and Seagull Operations Center. - Address and resolve complaints promptly and professionally.